

Exhibit III: Conflict of Interest Policy and Procedures

Companion document to the BCOC Bylaws 2026 Amendment Package

Status: Proposed 2026 · **Vote required:** Yes (Agree / Do Not Agree / Agree with Suggested Edits)

This exhibit is incorporated by reference into Article XII, Section 1 of the BCOC Bylaws.

Conflict of Interest Policy and Procedures

Objective: To ensure that when actual, potential, or perceived conflicts of interest arise, the organization has a clear process through which the affected individual will advise the governing body of all relevant facts concerning the situation.

Purpose: The purpose of this Conflict of Interest Policy is to protect the interests of the Black Chief Officers Committee (BCOC) when it is contemplating entering into a transaction or arrangement that might benefit, or appear to benefit, the private interest of any current or former Executive Board member, officer, appointed official, employee, contractor, volunteer, or related party, or result in a possible excess benefit transaction. The BCOC is organized to serve the public interest, and each person acting on behalf of the BCOC must exercise sound judgment to maintain and further the public's trust and confidence in the organization.

Section 1. Scope and General Principles

1. This Policy establishes guidelines, procedures, and requirements for identifying conflicts of interest, disclosing them promptly, reviewing them fairly, managing them appropriately, and documenting the actions taken.
2. This Policy applies to the Executive Board, officers, appointed officials, committee members, employees, contractors, volunteers, and any other person acting on behalf of the BCOC.
3. This Policy is intended to supplement, and not replace, any applicable federal, state, or local laws governing conflicts of interest applicable to nonprofit and charitable organizations.
4. Questions regarding this Policy shall be directed to the Chairperson, or if the matter involves the Chairperson, to the Vice Chairperson or another disinterested officer designated by the Executive Board.

Section 2. Definitions

1. **Conflict of Interest** means a situation in which, in the judgment of the disinterested decision-makers of the BCOC, an individual's outside interests, relationships, or activities interfere with, compete with, or could reasonably appear to interfere with the best interests of the BCOC.
2. **Covered Interest** includes a direct or indirect ownership interest, investment interest, compensation arrangement, fiduciary duty, legal commitment, or other material financial, personal, professional, or relational interest in an entity or matter with which the BCOC has, or is

negotiating, a transaction or arrangement.

3. **Interested Person** means any person covered by this Policy who has a direct or indirect Covered Interest.
4. **Related Party** includes a spouse, domestic partner, ancestor, sibling, half-sibling, child, adopted child, grandchild, great-grandchild, the spouse or domestic partner of any such person, and any entity, trust, partnership, or professional corporation in which the Interested Person or such relatives hold a material ownership, beneficial, management, or financial interest.
5. **Excess Benefit Transaction** means a transaction in which an economic benefit is provided by the BCOC, directly or indirectly, to or for the use of a disqualified person and the value of the economic benefit provided exceeds the value of the consideration received by the BCOC.

Section 3. Duty to Disclose

1. An Interested Person must disclose the existence of any actual, potential, or perceived Conflict of Interest as soon as the person becomes aware of it and, whenever possible, before the BCOC enters into the transaction or arrangement giving rise to the matter.
2. If the Interested Person is an Executive Board member or officer, the disclosure shall be made to the Executive Board or to another disinterested officer. If the Interested Person is not on the Executive Board, the disclosure shall be made to the person's supervisor, committee chair, or designated officer, who shall in turn notify the appropriate governing authority.
3. The Interested Person shall be given an opportunity to disclose all material facts relating to the matter under review.

Section 4. Determining Whether a Conflict Exists

1. After disclosure of the relevant facts, the disinterested members of the Executive Board, committee, or other authorized decision-making body shall determine by majority vote whether a Conflict of Interest exists.
2. After presenting the relevant facts, the Interested Person shall leave the meeting during discussion and vote on the matter, unless asked to remain temporarily for questions.
3. A determination that a Conflict of Interest exists does not automatically prohibit the transaction or arrangement, but it requires the BCOC to apply the procedures in this Policy before any approval is granted.

Section 5. Procedures for Addressing a Conflict of Interest

1. The Interested Person may make a presentation, but shall not attempt to influence the deliberations or vote after presenting the relevant facts.
2. The Chairperson, or other presiding disinterested officer, may appoint a disinterested person or committee to gather additional information, obtain comparability data, or evaluate alternatives to the proposed transaction or arrangement.
3. After exercising due diligence, the disinterested decision-makers shall determine whether the BCOC can obtain a more advantageous arrangement that does not give rise to a conflict.
4. If a more advantageous arrangement is not reasonably possible, the disinterested decision-makers may approve the transaction or arrangement only if they determine that it is fair, reasonable, in the best interests of the BCOC, and consistent with the BCOC's mission and fiduciary obligations.

Section 6. Violations of this Policy

1. If the BCOC has reasonable cause to believe that an Interested Person failed to disclose a conflict,

the person shall be informed of the basis for that belief and given an opportunity to explain.

2. If, after review, the BCOC determines that the person failed to disclose a conflict, it may take appropriate corrective or disciplinary action consistent with the Bylaws, this Policy, and applicable law.
3. Suspected failures to disclose may also be reported under the BCOC Whistleblower Protection Policy.

Section 7. Confidentiality

The BCOC shall maintain confidentiality regarding disclosures and related deliberations to the extent reasonably possible, consistent with the need for fair review, organizational transparency, legal compliance, and appropriate documentation.

Section 8. Records of Proceedings

The minutes of any meeting in which a conflict matter is discussed shall, at a minimum, reflect: the name of the Interested Person; the nature of the disclosed interest; whether the Interested Person was present during any portion of the discussion; the determination made as to whether a conflict existed; the names of those participating in the discussion; any alternatives considered; and the vote or final disposition of the matter.

Section 9. Compensation

Any voting member of the Executive Board or of a committee whose jurisdiction includes compensation matters and who receives compensation, directly or indirectly, from the BCOC for services shall not vote on matters pertaining to that person's compensation, although the person may provide factual information when requested.

Section 10. Annual Statements and Disclosure Form

Every elected or appointed Executive Board member shall annually complete and sign the BCOC Conflict-of-Interest Disclosure Form and shall also disclose any newly arising conflicts as they occur. Other persons covered by this Policy may be required to complete disclosures when directed by the Executive Board or when circumstances warrant.

Section 11. Periodic Review and Use of Outside Advisors

The BCOC may conduct periodic reviews of transactions, compensation arrangements, partnerships, and governance practices to ensure continued compliance with this Policy and the organization's charitable purposes. The BCOC may use legal counsel, accounting professionals, or other outside advisors; however, the use of outside experts does not relieve the Executive Board of its fiduciary responsibilities.

Section 12. Acknowledgement

I acknowledge that I have received, read, understand, and agree to comply with this Conflict-of-Interest Policy and Procedures.

Signature:

Printed Name:

Title/Role:

Date:

OPEN THE FEEDBACK FORM TO VOTE

Black Chief Officers' Committee · Prepared for feedback prior to the Executive Board vote and member vote in August 2026.